

July 27, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0003212 Jefferson Capital Systems, LLC vs. John Ahearn

No appearances required. In light of the judgment filed on July 2, 2026, the OSC re Failure to Request Default is dismissed.

2. CL0003783 Independence Capital Recovery, LLC (ICR) vs. MICHELLE SHELTON

No appearances required. In light of the proof of service of the Summons and Complaint filed on June 2, 2026, the OSC re Dismissal is dismissed. The Court notes, contrary to the declaration of counsel filed on July 20, 2026, the Court has not received a default judgment package filed under separate cover.

3. CL0003831 Midland Credit Management Inc. vs. William Wong

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for five (5) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for October 16, 2026 at 11:00 a.m.

4. CU0001445 James B. House vs. Gregory Atchley et al

Plaintiffs' motion to compel compliance with deposition subpoena for production of business records served on non-party Cory A. Birnberg is granted in part as described herein. Non-party Birnberg is ordered to respond to the subpoena, except requests 5-7 and 9, within 30 days' notice of this ruling. Subpoenaed Party Birnberg's motion to quash service of subpoena is granted in part as described herein, as to requests 5-7 and 9. Both parties' requests for sanctions are denied.

Legal Standards

Motion to Compel Deposition Subpoena

A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition subpoena for production of business records. Code Civ. Proc., § 2020.010. A deposition subpoena may command either: (1) only the attendance and testimony of the deponent, (2) only the production of business records for copying, or (3) the attendance and testimony of the deponent, as well as the production of business records, other documents, electronically stored information, and tangible things. Code Civ. Proc., § 2020.020.

Service of a deposition subpoena shall be effected in such a manner as to allow sufficient time in advance of the deposition to provide the deponent a reasonable opportunity to locate and produce any designated documents and, where personal attendance is commanded, a reasonable time to travel to the place of deposition. Code Civ. Proc., § 2020.220(a). Personal service of any

deposition subpoena is effective to require a deponent who is a resident of California to: personally appear and testify, if the subpoena so specifies; to produce any specified documents; and to appear at a court session if the subpoena so specifies. Code Civ. Proc. § 2020.220(c). A deponent who disobeys a deposition subpoena may be punished for contempt without the necessity of a prior order of the court directing compliance by the witness. Code Civ. Proc. § 2020.240. A motion to compel compliance with a deposition subpoena must be made within 60 days after completion of the deposition record, the date objections are served, or the date specified for production, and be accompanied by a meet and confer declaration. Code Civ. Proc. §2025.480(b); *Board of Registered Nursing v. Sup.Ct.* (2021) 59 Cal.App.5th 1011, 1032-1033.

Motion to Quash Deposition Subpoena

All matters which are not privileged and which are relevant to the subject matter involved in a lawsuit are discoverable under the California Discovery Act. Code of Civil Procedure section 2017.010(a) sets forth the general scope of discovery states as follows:

Unless otherwise limited by the order of the court in accordance with this article, any party may obtain discovery regarding any matter not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion in that action if the matter either is admissible in evidence or appears reasonable calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action.

Information that is not relevant or may not lead to the discovery of admissible evidence is not discoverable. A litigant does not waive all rights to privacy as to unrelated matters. *Britt v. Superior Court* (1978) 20 Cal.3d 844, 864-65. A litigant is entitled to retain the confidentiality of information unrelated to the litigation. *Ibid.* Even when information sought is relevant to the litigation, the party has a right to privacy as to their confidential financial affairs. *Cobb v. Superior Court* (1979) 99 Cal.App.3d 543, 550. The right of privacy prevents excessive intrusion into matters normally regarded as confidential. *H&M Associates v. City of El Centro* (1980) 109 Cal.App.3d 399, 409.

Matters that would otherwise be protected by the constitutional right of privacy are discoverable only if “directly relevant to plaintiff’s claims and essential to the fair resolution of the lawsuit.” *Vinson v Super. Court* (1987) 43 Cal.3d 833, 841-842. “When the right to discovery conflicts with a privileged right, the court is required to carefully balance the right of privacy with the need for discovery.” *Harris v. Super. Court* (1992) 3 Cal.App.4th 661, 665.

Although admissibility is not a prerequisite to discoverability, a heightened standard of discovery may be justified when dealing with information which, though not privileged, is sensitive or confidential.” *Volkswagen of America, Inc. v. Super. Ct.* (2006) 139 Cal.App.4th 1481, 1492. “The burden is on the party seeking the constitutionally protected information to establish *direct relevance*.” *Davis v. Super. Ct.* (1992) 7 Cal.App.4th 1008, 1017 [emphasis added]. “Mere speculation as to the possibility that some portion of the records might be relevant to some substantive issue does not suffice.” *Id.*

In challenging the right of a party to take a deposition, Code of Civil Procedure section 2025.410(c) states, “In addition to serving [a] written objection, a party may also move for an order staying the taking of a deposition and quashing the deposition notice.” With respect to a deposition subpoena, Code of Civil Procedure section 1987.1(a) authorizes a motion to quash, mandating:

If a subpoena requires . . . the production of books, documents, electronically stored information, or other things before a court, or at the trial of any issue therein, or at the taking of a deposition, the court, upon motion reasonably made . . . or upon the court’s own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon such terms or conditions as the court shall declare, including a protective order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

Analysis

Because the motions involve the same general analysis, the Court will consider them together.

Party / Non-Party Status

In his motion to quash, Birnberg argues he is “not a party” and thus the information sought is irrelevant. Mot. to Quash, 2:13. In his opposition to the motion to compel, Birnberg argues he is a party so a non-party deposition is not the appropriate discovery mechanism. Opp. Mot. Compel, 4:13-23. It appears Birnberg is trying to take advantage of his shifting status to maximize the arguments he can make against producing the documents requested; however, one cannot have his cake and eat it too. Because Birnberg argued in his own motion to quash he is a non-party, the Court will rely on that assertion. Additionally, as noted by both Plaintiffs and Birnberg, Birnberg is no longer a party to the action after the Court granted his anti-SLAPP motion without leave to amend. Thus, the Court will analyze the motions based upon a finding Birnberg is no longer a party to the suit.

Timeliness

Birnberg next argues the deposition subpoena was invalid because Plaintiffs served the deposition subpoena simultaneously with the cross-complaint on February 24, 2026. However, the record reflects it was not Plaintiff who filed the cross-complaint, but rather Defendants, and any simultaneous service of the deposition subpoena and cross-complaint was coincidental. Code of Civil Procedure § 2020.410(c) only requires compliance “on a date that is no earlier than 20 days after the issuance, or 15 days after the service, of the deposition subpoena, whichever date is later.” Code Civ. Proc. § 2020.410(c). The deposition subpoena was issued on February 6, 2026, personally served on served on February 24, 2026 and ordered production of business records by March 13, 2026, which complies with the statutory guidelines. Pruna Decl., Ex. C. Thus, Birnberg’s timeliness argument fails.

Birnberg also argues Plaintiffs violated the “discovery hold” under Code of Civil Procedure § 425.16 because discovery was automatically stayed by his anti-SLAPP motion. However, the

stay expired upon notice of entry of the order ruling on the anti-SLAPP motion, which was filed and served on May 6, 2026. Plaintiffs filed their motion to compel on May 11, 2026 after the stay had expired. Therefore, the issue of a discovery stay is moot.

Relevance

Birnberg argues his insurance documents are irrelevant to Plaintiffs' claims against Defendants and the subpoena violates his privacy rights. The Court disagrees.

"California law provides parties with expansive discovery rights." *Lopez v. Watchtower Bible & Tract Society of N.Y., Inc.* (2016) 246 Cal.App.4th 566, 590-591. Specifically, the Code provides "any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." Code Civ. Proc. § 2017.010; see also, *Garamendi v. Golden Eagle Ins. Co.* (2004) 116 Cal.App.4th 694, 712, fn. 8. "For discovery purposes, information is relevant if it 'might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement...'" See *Lopez, supra*, 246 Cal.App.4th at 590-591, citing *Garamendi, supra*, 116 Cal.App.4th at 712, fn. 8. "Admissibility is not the test and information[,] unless privileged, is discoverable if it might reasonably lead to admissible evidence." *Ibid.* "These rules are applied liberally in favor of discovery, and (contrary to popular belief), fishing expeditions are permissible in some cases." *Ibid.* The scope of discovery is one of reason, logic and common sense. *Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1612. The right to discovery is generally liberally construed. *Williams v. Superior Court* (2017) 3 Cal.5th 531, 540.

Compelling need is not always the test to apply in determining whether discovery is permissible, as "[c]ourts must instead place the burden on the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies". *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557. Good cause should be shown on requests for production from non-parties as well as parties. *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 223-224. Good cause can be met through showing specific facts of the case and the relevance of the requested information. *Associated Brewers Distributing Co. v. Superior Court of Los Angeles County* (1967) 65 Cal.2d 583, 586-587. "(T)he good cause which must be shown should be such that will satisfy an impartial tribunal that the request may be granted without abuse of the inherent rights of the adversary. There is no requirement, or necessity, for a further showing." *Greyhound Corp. v. Superior Court In and For Merced County* (1961) 56 Cal.2d 355, 388.

As the right to discovery is liberally construed, so too is good cause. *Id.* at 377-378. "(A) party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities. (Citation). In assessing the party's proffered justification, courts must keep in mind the more limited scope of discovery available from nonparties." *Board of Registered Nursing v. Superior Court of Orange County* (2021) 59 Cal.App.5th 1011, 1039; citing *Calcor Space Facility* at 567; see also *Catholic Mutual Relief Society v. Superior Court* (2007) 42 Cal.4th 358, 366.

At bar, Birnberg formerly represented Plaintiffs in the action and in a related case, and Birnberg was involved in the construction project dispute. Pruna Decl., ¶ 3. Further, on June 2, 2025, Birnberg filed a Notice of Charging Lien asserting a lien against any recovery obtained by Plaintiffs for attorney's fees and costs. Pruna Decl., Ex. B. Therefore, Birnberg has put at issue his own financial interest in the case. Additionally, Birnberg's prior representation of Plaintiffs in the action put at issue professional liability matters making his insurance documents relevant.

Next, Birnberg argues the deposition subpoena violates his privacy rights by requesting insurance documents. The Court again disagrees.

"A party may obtain discovery of the existence and contents of any agreement under which any insurance carrier may be liable to satisfy in whole or in part a judgment that may be entered in the action or to indemnify or reimburse for payments made to satisfy the judgment." Code Civ. Proc. § 2017.210. "Insurance policies are subject to a request for production..." which is limited to discovery of the "contents" of the insurance policies. *Irvington-Moore, Inc. v. Superior Court* (1993) 14 Cal.App.4th 733, 734-735.

Therefore, the content of insurance policies for the subject time period are not shown to be privileged and may lead to admissible evidence. *Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Superior Court* (2006) 137 Cal.App.4th 579, 598. "Liability insurance policies are discoverable "to avoid a situation where any party argues language in the policy precludes coverage in this matter." *Ibid.* To the extent the deposition subpoena seeks the contents of the insurance policies (namely Request Nos. 1-4, 8, 10), the motion to compel is granted and the motion to quash is denied, **subject to a protective order in a form submitted by counsel and approved by the Court, or any privilege log Birnberg may file.** To the extent the deposition subpoena seeks documents, communications, or correspondence exceeding the contents of insurance policies (namely Request Nos. 5-7, 9) the motion to compel is denied and the motion to quash is granted.

Sanctions

Both parties request sanctions in connection with their respective motions. Although both parties have been successful in part, the respective actions do not constitute a misuse of the discovery process and both were unsuccessful, in part. Therefore, each of the parties' requests for monetary sanctions are denied.

In light of the Court's addressing both the Motion to Quash and the Motion to Compel simultaneously, the Court directs counsel for Plaintiffs' to prepare an order after hearing as to both motions setting forth the Court's ruling herein verbatim and to file and serve a corresponding notice of entry which, again, shall be deemed to pertain to ruling on both motions.

5. CU0001498 Robin Fladeboe et al vs. Gail H Beardsley et al

Appearance required by Plaintiffs to show cause as to why this case should not be dismissed and/or Plaintiffs sanctioned for failure to file a Request for Dismissal despite the fact a Notice of Settlement was filed nine (9) months ago indicating a request for dismissal would be filed no later than April 30, 2026. Absent good cause being shown, the Court intends, on its own motion,